



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9931
(CORRECTED COPY)

JUN 23 1988

1. American Cyanamid Company, is hereby granted an emergency exemption from certain provisions of this Department's Hazardous Materials Regulations to offer a package prescribed herein of an oxidizer for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the shipment of nitric acid in a DOT Specification 111A60W7 tank car tank which is equipped with a 45 psi safety valve, and provides no relief from any regulations other than as specifically stated.

2. BASIS. This emergency exemption is based on American Cyanamid's application of February 9 and 10, 1988 and June 1, 1988, submitted in accordance with 49 CFR 107.113, based on a serious economic loss.

3. HAZARDOUS MATERIALS (Descriptor and class). Nitric acid (over 40%), classed as an oxidizer.

4. PROPER SHIPPING NAME (49 CFR 172.101). Nitric acid.

5. REGULATION AFFECTED. 49 CFR 179.201-1.

6. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a DOT Specification 111A60W7 tank car tank (39 tank cars - UTLX 42900 thru UTLX 42938) meeting all DOT requirements (49 CFR 100-299), except the tank is equipped with a 45 psi safety valve in lieu of a 35 psi safety valve.

8. SPECIAL PROVISIONS.

a. The Federal Railroad Administration (FRA) is to be notified immediately if any unusual incident occurs during the movement by contacting the:

Federal Railroad Administration
Office of Safety, RRS-12
400 7th Street S.W.
Washington D.C. 20590
(202) 366-9178 or 366-0549

b. Tank cars must be stenciled "DOT-E 9931" in four inch letters above the DOT specification stenciling.

c. Persons who receive packages covered by this exemption may reship them pursuant to the provisions of 49 CFR 173.22a.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Transportation (OHMT) as soon as practicable.

10. EXPIRATION DATE. July 15, 1988.

Issued at Washington, D.C.:

JUN 23 1988

sn/ J. Augustine Hedgpeth
Alan I. Roberts

Director

Office of Hazardous Materials
Transportation

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials
Transportation, Research and Special Programs Administration, U.S.
Department of Transportation, Washington, D.C., 20590. Attention:
Exemptions Branch.

Dist: FRA